

Athens, 29-02-2024

Ref. No.: 681

DECISION 11/2024

The Hellenic Data Protection Authority (hereinafter referred to as the "Authority") convened at the invitation of its President for a meeting on Tuesday, 13-06-2023, at 10:00, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos, Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Christos Kalloniatis, Aikaterini Iliadou, and Grigorios Tsolias, as rapporteur. Present, without voting rights, were Stefania Plota, special scientist - lawyer, as assistant rapporteur, and Irini Papageorgopoulou, employee of the administrative affairs department, as secretary.

The Authority took into account the following:

With complaint No. G/EIS/5639/08-09-2021, A (hereinafter referred to as the "complainant") appealed to the Authority against the company Google LLC (hereinafter referred to as "Google" or "the company") for the failure to satisfy the right to erasure (right to be forgotten) of results appearing in the Google search engine based on the complainant's name. Specifically, the complainant states that she has been definitively convicted of the penalty ... for committing a crime, an event that has attracted public attention, without, as she claims, being a public figure, but rather a relative of ... and sensitive data concerning her criminal status was extensively published solely due to her familial relationship, without the relative in question being related to the specific charges against her. Furthermore, the complainant states that, as indicated by the No. ... Order of the Public Prosecutor of Misdemeanors ..., which she attaches to the complaint, her relative is in no way related to the acts attributed to her and therefore, it is incorrect for websites to publish sensitive data as she is not a public figure. The complainant, as the data subject, submitted an online request to the company on ... for the deletion of results from the Google search engine based on her name, so that information regarding her criminal conviction would not appear as a result, and on ... she submitted six (6) additional online requests for the following total links:

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The complainant states that the company rejected the deletion requests with the responses dated ..., in which the company invokes the "alleged public interest" in the professional activities of the complainant and claims that these responses are incorrect, as no public interest allows for the publication of sensitive data regarding criminal convictions, especially in the absence of a relevant prosecutorial order under Article 2 of Law 2472/1997 permitting the publication of such information for criminal prosecutions or convictions, and therefore the company is obliged to delete all related data from the results of its search engine.

The Authority, in the context of examining the above complaint, summoned the companies Google LLC, as the operator of the Google search engine, and Google Hellas with document No. G/EXE/2809/07-12-2021, to provide their views on the allegations. The company Google LLC responded with document No. G/EIS/8380/24-12-2021 that on ... the complainant submitted her request with reference number ... to Google, and on ... she submitted her requests with reference numbers ..., ..., ..., ..., ..., and ..., in which she sought the removal from search results based on her name of the links (URLs) mentioned in the above requests, invoking the right to be forgotten. On ... and ... respectively, the company responded to the complainant regarding the above requests, among other things, as follows: "[...] having weighed the relevant rights and interests related to the content in question and considering factors such as its relevance to your professional life, Google has decided not to remove this content. At this stage, Google has decided not to take any action regarding these links...". In its above document to the Authority, the company states that in the case at hand, the content of the above links under points 1-12 exclusively refers to information related to the professional activity of the complainant, who is a publisher and entrepreneur (among other roles, publisher of X) and is alleged to have committed serious felonies for which she has been sentenced to ... in the first instance according to the content of the aforementioned publications, and in the second instance, the same sentence was upheld according to the complainant's attorney ["she has been convicted of ... (not irrevocably, but definitively) a fact that has attracted public attention [...]"]. Furthermore, in the company's document, it is stated that the complainant does not invoke or prove in any way the inaccuracy of the contested content; on the contrary, she accepts the accuracy of the information as stated above. The accuracy of the information is also confirmed by the aforementioned Prosecutorial Order No. ..., which states that criminal charges have been brought against the complainant for a series of criminal acts. The content of the contested links is recent and relevant, as the complainant's trial in the second instance took place very recently, namely on ... of ..., and the contested publications refer to felonies that the complainant is alleged to have committed and which carry significant criminal liability. Furthermore, the above links under points 13-14, as stated by the company, refer to the non-payment of employees' wages and to ... regarding this issue and issues related to the insurance of personnel, as well as the fact that the complainant did not attend the said meeting. The content of these links is directly related to the professional life of the complainant, who was the publisher of X, and who does not invoke or prove the inaccuracy of the specific information. In

light of the above, a legitimate public interest is established for access to this information and, therefore, as claimed by the company, the deletion of the relevant links is not permissible based on the criteria set forth by the “Guidelines of the Article 29 Working Party,” and the claims included in the complaint are not sufficient to substantiate and do not substantiate the right to be forgotten and, consequently, do not justify the deletion of the contested links (URLs). Finally, the company stated that for the content of the above links under points 15-39, which on the one hand do not refer to the complainant, and on the other hand lead users to websites whose content is not available, the company will proceed to delete these from the list of search results that appear based on her name.

Following the examination of the file's elements, the Authority, with documents No.

Γ/ΕΞ/2999/23-11-2022 and Γ/ΕΞ/3004/23-11-2022, summoned the aforementioned companies and the complainant, as legally represented, to attend, via videoconference, the meeting of the Authority's Plenary on Tuesday, 29-11-2022, in order to discuss the complaint in question. At the above meeting, the request for postponement submitted by the complainant's attorney was discussed, which was accepted by the Plenary, and a new date for the Plenary meeting to discuss the complaint in question was set for 10-01-2023. At this meeting, the complainant's attorney Vasileios Sotiropoulos (AMDS ...) and on behalf of Google LLC, Ioannis-Dionysios Filiotis (AMDS ...), Charikleia Daouti (AMDS ...), and Evangelia Tsirigoti (AMDS ...) attended and expressed their views. Before the end of the meeting, the complainant's attorney left, and subsequently, the complainant and the company...

submitted the documents with reference numbers Γ/ΕΙΣ/658/27-01-2023 and Γ/ΕΙΣ/715/31-01-2023, respectively, within the relevant deadline set by the President during the session. The complainant, in the memorandum submitted after the discussion of the case, argues that the deletion of the above-mentioned items 1-6, 11, 13, and 14, nine (9) links, is warranted, as the request for their deletion from the results displayed in the search engine pertains to personal data related to her criminal conviction, combined with the fact that she is not a public figure. According to the criteria that must be taken into account, the data controller must examine whether the data subject "is still active in the same profession," while the complainant was convicted for acts that date back to the period when she was a publisher X, a period that dates back to more than fifteen years ago, from which she has ceased to engage in business in the publishing sector... Furthermore, the complainant, referring to the guidelines of the EDPB 5/2019, emphasizes that among the criteria mentioned by the Council are: “[...] - the data subject does not play any role in public life; - the information in question does not relate to their professional life but affects their private life;” and claims that the data controller did not take these specific criteria into account, which are also the most significant in the case at hand, while particular emphasis should be placed on the particularly burdensome nature of the personal data in question, as the personal data that the complainant requests to be deleted pertains to her conviction to life imprisonment, which is the most severe penalty that can be imposed by the current criminal system. In the decision of 08-12-2022 in case C-460/2020, the Court of Justice of the European Union (CJEU - Grand Chamber) reiterated that from the case law of the European Court of Human Rights (ECHR) it follows that, regarding the publication of data, in weighing the right to respect for private life against the right to freedom of expression and information, certain fundamental criteria must be taken into account, such as, among others, the contribution to a public interest debate, the reputation of the affected party, the subject matter of the disclosure, the prior life of the interested party, the content, form, and consequences of the publication, the manner and circumstances under which the information was obtained, as well as their truthfulness (see ECHR decision of June 27, 2017, Satakunnan Markkinapörssi Oy and Satamedia Oy v. Finland § 165). Also, in the same recent decision, the CJEU ruled that the rights protected by Articles 7 and 8 of the Charter of Fundamental Rights of the European Union (CFREU) of the data subject generally outweigh the legitimate interest of potential interested users of the internet in accessing the relevant information (para. 62). This is overturned when the data subject plays a significant role in public life (para. 65). The complainant argues that she does not have such a status and does not play any role in public life whatsoever. Finally, regarding the public's right to information, which the data controller invokes, the complainant refers to the ruling of the Court of Justice of the European Union in the decision of 24-09-2019 (Grand Chamber) in case C-136/17, which has become known as the Google 2 decision, where specifically

regarding the issue of data concerning criminal convictions (Article 10 of the GDPR), the Court ruled in that case that the operator of a search engine must ascertain “whether the appearance of this link in the list of results generated by a search based on the name of the data subject is absolutely necessary for the protection of the freedom of information of users of the internet who may be interested in accessing this information through such a search.” (para. 68 of the decision). This means that if the appearance is “merely” necessary for the information of users, then the provisions of Articles 7 and 8 of the Charter in conjunction with Articles 9(2)(g) and 10 of the GDPR have not been complied with. The complainant argues that in the present case, the data controller has not even claimed that the retention is “absolutely necessary” for informing the public but has limited itself to stating that the information pertains to the professional life of the complainant, without having taken...

****Considering the situation of the complainant in this case and the fact that she has not been a publisher for many years... The mere fact that the... of the complainant continues to be..., does not allow for the publication of the criminal conviction of the complainant, especially when based on the cited prosecutorial order, the... of the complainant had absolutely no involvement in the acts for which the complainant was convicted. The company Google LLC, with the memorandum submitted to the Authority after the discussion of the case, reiterates what it has already mentioned, adding that in the Guidelines 5/2019 of the EDPB regarding "the criteria governing the right to be forgotten under the GDPR in the cases of search engines," it is stated that "the CJEU recognized in the Costeja decision and recently reiterated in the Google 2 decision that the processing carried out by a search engine provider may significantly affect the fundamental rights to privacy and data protection legislation when the search is conducted using the name of the data subject. In weighing the rights and freedoms of data subjects and the interests of Internet users regarding access to information through the search engine provider. However, it identified certain factors that may affect this preeminence. Among these are: the nature of the information or the degree of sensitivity of the information, and in particular the interest of Internet users in accessing information, which may vary depending on the role played by the interested party in public life." The company concludes that the complainant, regarding the information related to her professional activity as a shareholder, director, and publisher X, positions under which she committed violations and criminal acts against her employees, as well as as a member of other companies, does not claim, nor prove inaccuracies regarding her criminal conviction and confirms that she was imposed the same penalty at the appellate level, taking into account the Prosecutorial Order. Therefore, according to the company, a legitimate public interest is established to access the information.****

****The Authority, after examining all the elements of the file and those arising from the hearing before it and the memoranda of the parties, having heard the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights, after thorough discussion,****

****CONSIDERED IN ACCORDANCE WITH THE LAW****

1. ****Whereas, from the provisions of Articles 51 and 55 of the General Data Protection Regulation 2016/679 (GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), it follows that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data.****

2. ****Whereas Google LLC, based in the United States of America, with its letter No. G/EIS/10060/14-12-2018 informed the Authority that, although Google Ireland will be the data controller for the user data collected and processed when users interact with Google's services - including data collected through the Google search engine, where users choose to store activity data or search history in their accounts - Google LLC will continue to be the data controller of the indexed content (index) of the Google search engine and manage the deletion process under the right to be forgotten. Therefore, in the case under consideration, the purpose and means of processing to satisfy the right to deletion (to be forgotten), according to Article 17 of the GDPR, are fully determined by Google LLC, as it states, whose establishment is outside the European Union. Consequently, although this specific activity concerns data subjects located within the territory of the Union, since Google LLC does not have a main establishment in the Union for the activity under consideration, the "one-stop-shop" mechanism established by the GDPR, according to Articles 56 and 60, does not**

apply, and therefore, according to the provisions of Articles 55 para. 1, 2 para. 1 and 3 para. 2 of the GDPR and 13...**

paragraph 1 item z of Law 4624/2019, the Authority has the competence to address the complaint of A regarding the violation of the right to erasure.

3. Since the activity of Google Hellas/Athens (GOOGLE HELLAS Internet Applications Single Member Limited Liability Company) is the provision of marketing services to Google Ireland, the complaint regarding the rejection of the request for the removal of links in the context of satisfying the right to be forgotten is examined only concerning Google LLC as the data controller of the indexed content (index) of the Google search engine.

4. Since according to Article 17 paragraph 1 of the GDPR, "the data subject has the right to request the erasure of personal data concerning them without undue delay and the data controller is obliged to erase personal data without undue delay, if one of the following reasons applies: a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed, [...], c) the data subject objects to the processing pursuant to Article 21 paragraph 1 and there are no compelling legitimate grounds for the processing or the data subject objects to the processing pursuant to Article 21 paragraph 2, d) the personal data have been processed unlawfully, [...]." In paragraph 3 of the same article, it is stated that "paragraphs 1 and 2 do not apply to the extent that the processing is necessary: a) for the exercise of the right to freedom of expression and information [...]."

5. Since according to the aforementioned Article 17 of the GDPR, as interpreted in substance by the Guidelines 5/2019 of the EDPB, the data subject has the right to request the erasure of personal data concerning them without undue delay and the data controller is obliged to erase personal data without undue delay, if one of the reasons mentioned in Article 17 of the GDPR applies. The EDPB emphasizes that, in cases where the request for erasure is made for the first reason, namely the data subject requests the removal of content from search results when their personal data are no longer necessary in relation to the purposes, the search engine must ensure a balance between the protection of privacy and the rights of Internet users in accessing information. In particular, it should be assessed whether, over time, the personal data have become outdated or have not been updated. Furthermore, the EDPB states that in cases where the request for erasure is made for the third reason, namely the data subject opposes the processing, the GDPR provides stronger guarantees to data subjects than Directive 95/46, because the right to object under the GDPR does not limit the grounds on which data subjects can request erasure under Article 17 paragraph 1 of the GDPR. The data subject can object to the processing "on grounds relating to their particular situation," without needing to demonstrate "compelling legitimate grounds," as was required by Directive 95/46. The GDPR shifts the burden of proof and provides a presumption in favor of the data subject, obliging the data controller (in this case, Google) to prove the compelling legitimate grounds that make the processing absolutely necessary (Article 21 paragraph 1 GDPR). Consequently, when a search engine provider receives a request for erasure today based on the particular situation of the data subject, it is now obliged to erase the personal data, according to Article 17 paragraph 1 item c of the GDPR, unless it can demonstrate that there are "compelling legitimate grounds" for including the specific search result, which in conjunction with Article 21.

Paragraph 1 constitutes "imperative and lawful reasons (...) which prevail over the interests, rights, and freedoms of the data subject."

6. Since, according to the case law of the Court of Justice of the European Union, the data subject has the right to cease the information related to them from being linked to their name through the results list that arises following a search conducted based on the name of a natural person, and furthermore, such a search may result in users being able to obtain, through the results list, a systematic overview of the information available on the internet concerning that person, which provides users the ability to form a more or less detailed profile of the data subject, which pertains to the private life of the data subject.

7. Since, moreover, according to the case law of the Court of Justice of the European Union, it is incumbent upon the person requesting the deletion of links, in the event of alleged inaccuracy of the classified content, to prove the manifest inaccuracy of the information contained in the said content by

providing the evidence that can reasonably be expected to be available to them, in light of the circumstances of the specific case, in order to demonstrate this manifest inaccuracy.

8. Since further, according to the case law of the Court of Justice of the European Union, "[...] although the rights protected by Articles 7 and 8 of the Charter of Fundamental Rights of the European Union generally prevail over the legitimate interest of potential internet users in accessing the information in question, this balancing may depend on the critical circumstances of each case, particularly on the nature of the information in question and its sensitive character for the private life of the data subject, as well as on the public interest in having access to this information, an interest which may vary depending, among other things, on the role played by the data subject in public life [decisions of May 13, 2014, Google Spain and Google, C-131/12, EU:C:2014:317, para. 81, as well as September 24, 2019, GC et al. (Deletion of links to sensitive data), C-136/17, EU:C:2019:773, para. 66]. Specifically, when the data subject plays a role in public life, they must exhibit a greater degree of tolerance, given that they inevitably and knowingly expose themselves to public scrutiny (see ECtHR judgment of October 6, 2022, Khural and Zeynalov v. Azerbaijan, CE:ECHR:2022:1006JUD005506911, § 41 and the case law cited therein)."

9. Since according to the case law of the Authority, the reasons for submitting a request for the deletion of a link to a search engine service provider, such as Google, must be substantiated.

10. Since the status of the complainant, even if only in the past, as publisher X entails increased public interest in being informed, taking into account Article 14 para. 9 of the Constitution regarding the transparency of matters concerning the ownership status of the media.

11. Since in the case under consideration, the links referred to in points 7-10, 12, and 15-39 lead to websites that do not display content or display content that does not include the name of the complainant.

12. Since the aforementioned links numbered 13 and 14, namely:

...

...

contain, on the one hand, the first the announcement from ... of the Coordinating Committee for X and on the other hand, the second the article from ... of the website X, regarding the non-payment of due contributions of employees, their insurance, etc., that is, information that on the one hand is not related to the imposition of a penalty ... in the

****1.**** The complainant, on the other hand, is considered outdated, as they are older than fifteen (15) years and concern issues that no longer interest the reading public. Given these facts, the conditions for the deletion of the above links from the results of the Google search engine based on the name of the complainant are met, and therefore, the examination of additional criteria for their deletion is unnecessary.

****2.**** Since the seven (7) links referred to in points 1-6 and 11 above concern journalistic articles, for the content of which the complainant does not claim or prove any inaccuracy, on the contrary, they confirm the fact of the criminal prosecution and final conviction against them with the penalty

****3.**** Since the complainant, while admitting that they have been definitively convicted to the penalty ..., nevertheless does not specify the crimes for which they were convicted in their complaint and does not provide the relevant conviction decisions and trial records in order to examine whether these are related to their capacity as a publisher and whether they therefore interest public opinion, according to the criteria established by the case law of the European Court of Human Rights.

****4.**** Since the complainant admits that they were convicted for criminal acts, which they do not specify and which date back to the period when they were publisher X, as well as that this period dates back to a time over fifteen years ago, a time from which the complainant has ceased to engage in business activities in the publishing sector ..., without, however, proving this claim.

****5.**** Since in order to examine the above claims and positions of the complainant in conjunction with the reasons for the company's refusal to delete the above links, as well as the legality of the company's refusal to delete said links, it becomes necessary, based on the above reasoning under nos. 9 and 13-15, for the complainant to provide i. evidence indicating the time of cessation of their business

activity and ii. the conviction decisions and records concerning the complainant, including any decision of the Supreme Court regarding a request for annulment.

****6.**** Since the Authority finds that, regarding the two links (see paragraph 12) that contain posts from the years 2006 and 2008, there is no need for further investigation, as the mere fact of the passage of a long period since the publication of the information, combined with the fact that the latter concerned the employer and insurance contributions of employees X, is sufficient for the request of the complainant to be accepted towards the company Google LLC, as the data controller, for the deletion of these from the list of results in the Google search engine that appear based on the search criterion of the complainant's name.

****7.**** Based on the above, the Authority unanimously decides, on the one hand, that the complainant should be given the order mentioned in the operative part for the company, as the data controller, to comply with the request for deletion of the links referred to in points 13 and 14 above (see paragraphs 12 and 17) from the results of the Google search engine based on the complainant's name, and on the other hand, to postpone the discussion and issuance of a decision regarding the remaining seven (7) links until the complainant provides the evidence and documents mentioned in the above paragraph 17.

****FOR THESE REASONS****

The Authority:

1. Partially accepts the complaint and orders, in accordance with the provision of Article 58(2)(c) of the General Data Protection Regulation (EU) 2016/679, the company Google LLC, as the data controller, to immediately remove the links mentioned above in paragraph 12, as a result based on the search criterion of the complainant's name, from the Google search engine.
2. Postpones the discussion and issuance of a decision regarding the part of the complainant's deletion request concerning the seven (7) links mentioned in paragraph 13, until the complainant provides i. evidence indicating the time of cessation of their business activity X and ii. the conviction decisions and records concerning the complainant, including any decision of the Supreme Court regarding a request for annulment.

****The President****

****The Secretary****

Konstantinos Menoudakos

Irini Papageorgopoulou